

PRIVACY POLICY: PESA WEBSITE

This privacy policy applies between you, the User of this Website and ATLANTIC INERTIAL SYSTEMS LIMITED, the owner and provider of this Website. ATLANTIC INERTIAL SYSTEMS LIMITED takes the privacy of your information very seriously. This privacy policy applies to our use of any and all Data collected by us or provided by you in relation to your use of the Website.

PLEASE READ THIS PRIVACY POLICY CAREFULLY.

1. Definitions and interpretation

1.1. In this privacy policy, the following definitions are used:

ATLANTIC INERTIAL SYSTEMS LIMITED, We or Us or Our	ATLANTIC INERTIAL SYSTEMS LIMITED, a company incorporated in England and Wales with registered number 06208660 whose registered office is at Clittaford Road, Southway, Plymouth, PL6 6DE;
Data	Collectively all information that you submit to Us via the Website. This definition incorporates, where applicable, the definitions provided in the Data Protection Laws;
Cookies	a small text file placed on your computer by this Website when you visit certain parts of the Website and/or when you use certain features of the Website. Details of the cookies used by this Website are set out in the clause below (Cookies);
Data Protection Laws	any applicable law relating to the processing of personal Data, including but not limited to the Directive 96/46/EC (Data Protection Directive) or the GDPR, and any national implementing laws, regulations and secondary legislation, for as long as the GDPR is effective in the UK;
GDPR	the General Data Protection Regulation (EU) 2016/679;
UK and EU Cookie Law	the Privacy and Electronic Communications (EC Directive) Regulations 2003 as amended by the Privacy and Electronic Communications (EC Directive) (Amendment) Regulations 2011;
User or you or Your	any person or third party that accesses the Website for the intended service of Personnel Clearance or the management or the provision of such services;
Website or PESA	the website that you are currently using, https://aerospace.ukpesa.co.uk/ , and any sub-domains of this site unless expressly excluded by their own terms and conditions.

1.2. In this privacy policy, unless the context requires a different interpretation:

- 1.2.1. the singular includes the plural and vice versa;
- 1.2.2. references to sub-clauses, clauses, schedules or appendices are to sub-clauses, clauses, schedules or appendices of this privacy policy;
- 1.2.3. a reference to a person includes firms, companies, government entities, trusts and partnerships;
- 1.2.4. "including" is understood to mean "including without limitation";
- 1.2.5. reference to any statutory provision includes any modification or amendment of it;
- 1.2.6. the headings and sub-headings do not form part of this privacy policy.

2. Scope of this privacy policy

- 2.1. This privacy policy applies only to the actions of ATLANTIC INERTIAL SYSTEMS LIMITED and **Users** with respect to this **Website**. It does not extend to any websites that can be accessed from this **Website** including, but not limited to, any links we may provide to social media websites. This policy does not extend to any other services or represent any other privacy policy for the organisation, or parent organisations, and only intended for the use of this **Website**.
- 2.2. For purposes of the applicable Data Protection Laws, ATLANTIC INERTIAL SYSTEMS LIMITED is the "data controller". This means that ATLANTIC INERTIAL SYSTEMS LIMITED determines the purposes for which, and the manner in which, **Your Data** is processed.

3. Data collected

- 3.1. We will strictly collect only the specific **Data** that is needed to perform the service required and expected by the **User** to perform clearance and onboarding procedures as employees or contractors of **Us**, and performing so in-line with legislative, regulatory or other compliance requirements.
- 3.2. If **You** feel any **Data** required is not relevant or **You** dispute the requirement, do not input the **Data**, and contact the relevant person that sent **You** the application submission.

4. How we collect Data

- 4.1. We collect **Data** in the following ways:
 - 4.1.1. **Data** is given to **Us** by **You**; and
 - 4.1.2. **Data** is collected automatically.

5. Data that is given to us by you

- 5.1. **We** will collect **Your Data** in a number of ways, for example:
 - 5.1.1. when **You** use the services of the **Website** or by telephone, post, e-mail or through any other means for the purposes of the clearance service;
 - 5.1.2. when **You** register with **Us** initially in each case, in accordance with this privacy policy.

6. Data that is collected automatically

- 6.1. To the extent that **You** access the Website, B will collect **Your Data** automatically, for example:
- 6.1.1. **We** automatically collect some information about **Your** visit to the Website. This information allows **PESA** to provide a saved history of **Your** visit to the site. The site collects no data used for marketing or other related services.
 - 6.1.2. we will collect your Data automatically via cookies, in line with the cookie settings on your browser. For more information about cookies, and how we use them on the Website, see the section below, headed "**Cookies**".
- 6.2. **Our use of Data**
- 6.2.1. Any or all of the above **Data** may be required by **Us** during **Your** term of service, and retained according to compliance, regulation and legislative requirements for the length of time required by these requirements and in each case, in accordance with this privacy policy.
 - 6.2.2. **We** may use **Your Data** for the above purposes if **We** deem it necessary to do so for **Our** legitimate interests. If **You** are not satisfied with this, **You** have the right to object in certain circumstances (see the section headed "Your rights" below).
 - 6.2.3. When **You** register with **Us** and set up an account to use **Our** services, the legal basis for this processing is the performance of a contract between **You** and **Us** and/or taking steps, at **Your** request, to enter into such a contract.

7. Who we share Data with

- 7.1. We may share **Your Data** with the following groups of people for the following reasons:
- 7.1.1. **Our** employees, agents and/or professional advisors - to process **User** details;
 - 7.1.2. third party service providers who provide services to **Us** which require the processing of personal **Data** – to help third party service providers in receipt of any shared **Data** to perform functions on **Our** behalf to help ensure the **Website** runs smoothly;
 - 7.1.3. relevant authorities - to facilitate the detection of crime or the collection of taxes or duties; in each case, in accordance with this privacy policy.

8. Keeping Data secure

- 8.1. **We** will use technical and organisational measures to safeguard **Your Data**, for example:
- 8.1.1. access to **Your** account is controlled by a password and a user-name that is unique to **You**.
 - 8.1.2. **We** store **Your Data** on secure servers.
 - 8.1.3. **We** are certified to Cyber Essentials. This family of standards helps **Us** manage **Your Data** and keep it secure.
 - 8.1.4. Technical and organisational measures include measures to deal with any suspected data breach. If **You** suspect any misuse or loss or unauthorised access to **Your Data**, please contact **Us** immediately.
 - 8.1.5. If **You** want detailed information from Get Safe Online on how to protect **Your Data** and **Your** computers and devices against fraud, identity theft, viruses and many other online problems, please visit www.getsafeonline.org. Get Safe Online is supported by HM Government and leading businesses.

9. Data retention

- 9.1. Unless a longer retention period is required or permitted by law, we will only hold **Your Data** on **Our** systems for the period necessary to fulfil the purposes outlined in this privacy policy or until **You** request that the **Data** be deleted, where **We** are able to do so within compliance, regulation and legislative requirements.
- 9.2. Even if **We** delete **Your Data**, it may additionally persist on backup or archival paper or electronic media for legal, tax or regulatory purposes. **Your Data** will be cleansed upon the expiry of this required time, during the next **Data** cleanse within **Our** business.

10. Your rights

- 10.1. **You** have the following rights in relation to **Your Data**:
 - 10.1.1. **Right to access** - the right to request (i) copies of the **Data** we hold about **You** at any time, or (ii) that we modify, update or delete such information. If **We** provide **You** with access to the **Data** that we hold about **You**, we will not charge **You** for this, unless your request is "manifestly unfounded or excessive." Where **We** are legally permitted to do so, **We** may refuse **Your** request. If **We** refuse **Your** request, **We** will tell **You** the reasons why.
 - 10.1.2. **Right to correct** - the right to have **Your Data** rectified if it is inaccurate or incomplete.
 - 10.1.3. **Right to erase** - the right to request that **We** delete or remove **Your Data** from **Our** systems in-line with legal or regulatory requirements.
 - 10.1.4. **Right to restrict our use of your Data** - the right to "block" **Us** from using **Your Data** or limit the way in which **We** can use it in-line and accordance with legal or regulatory requirements that **We** may have to abide by.
 - 10.1.5. **Right to data portability** - the right to request that **We** move, copy or transfer **Your Data** in-line and accordance with legal or regulatory requirements that **We** may have to abide by.
 - 10.1.6. **Right to object** - the right to object to **Our** use of **Your Data** including where **We** use it for **Our** legitimate interests.
- 10.2. To make enquiries, exercise any of **Your** rights set out above, or withdraw **Your** consent to the processing of **Your Data** (where consent is our legal basis for processing your Data), please contact **Us**.
- 10.3. If **You** are not satisfied with the way a complaint **You** make in relation to **Your Data** is handled by **Us**, **You** may be able to refer **Your** complaint to the relevant data protection authority. For the UK, this is the Information Commissioner's Office (ICO). The ICO's contact details can be found on their website at <https://ico.org.uk/>.
- 10.4. It is important that the **Data** we hold about **You** is accurate and current. Please keep **Us** informed if **Your Data** changes during the period for which we hold it.

11. Links to other websites

- 11.1. This **Website** may, from time to time, provide links to other websites. **We** have no control over such websites and are not responsible for the content of these websites. This privacy policy does not extend to **Your** use of such websites. **You** are advised to read the privacy policy or statement of other websites prior to using them.

12. Changes of business ownership and control

- 12.1. **We** may, from time to time, expand or reduce **Our** business and this may involve the sale and/or the transfer of control of all or part of **Us**. **Data** provided by **Users** will, where it is relevant to any part of **Our** business so transferred, be transferred along with that part and the new owner or newly controlling party will, under the terms of this privacy policy, be permitted to use the **Data** for the purposes for which it was originally supplied to **Us**.
- 12.2. **We** may also disclose **Data** to a prospective purchaser of **Our** business or any part of it.
- 12.3. In the above instances, **We** will take steps with the aim of ensuring the **Users** privacy is protected.

13. Cookies

- 13.1. All **Cookies** used by this **Website** are used in accordance with current UK and EU Cookie Law.
- 13.2. Before the Website places **Cookies** on **Your** computer, **You** will be presented with a message bar requesting **Your** consent to set those Cookies. By giving **Your** consent to the placing of Cookies, **You** are enabling **Us** to provide a better experience and service to **You**. **You** may, if **You** wish, deny consent to the placing of **Cookies**; however certain features of the **Website** may not function fully or as intended.
- 13.3. **You** can find a list of **Cookies** that **We** use in the **Cookies** Schedule below under clause 16.
 - 13.3.1. **You** can choose to enable or disable **Cookies** in **Your** internet browser. By default, most internet browsers accept **Cookies** but this can be changed. For further details, please consult the help menu in **Your** internet browser.
 - 13.3.2. **You** can choose to delete **Cookies** at any time;
 - 13.3.3. It is recommended that **You** ensure that **Your** internet browser is up-to-date and that **You** consult the help and guidance provided by the developer of **Your** internet browser if **You** are unsure about adjusting **Your** privacy settings.
- 13.4. For more information generally on **Cookies**, including how to disable them, please refer to aboutcookies.org. **You** will also find details on how to delete **Cookies** from your computer.

14. General

- 14.1. **You** may not transfer any of **Your** rights under this privacy policy to any other person. **We** may transfer **Our** rights under this privacy policy where we reasonably believe **Your** rights will not be affected.
- 14.2. If any court or competent authority finds that any provision of this privacy policy (or part of any provision) is invalid, illegal or unenforceable, that provision or part-provision will, to the extent required, be deemed to be deleted, and the validity and enforceability of the other provisions of this privacy policy will not be affected.
- 14.3. Unless otherwise agreed, no delay, act or omission by a party in exercising any right or remedy will be deemed a waiver of that, or any other, right or remedy.
- 14.4. This Agreement will be governed by and interpreted according to the law of England and Wales. All disputes arising under the Agreement will be subject to the exclusive jurisdiction of the English and Welsh courts.

15. Changes to this privacy policy

- 15.1. **We** reserve the right to change this privacy policy as **We** may deem necessary due to legislative or regulatory requirements from time to time or as may be required by any law or compliance requirement. Any changes will be immediately posted on the **Website** and **You** are deemed to have accepted the terms of the privacy policy on your first use of the **Website** following the alterations.

16. Cookies Schedule.

- 16.1. Below is a list of the **Cookies** that **We** use. **We** have tried to ensure this is complete and up to date, but if **You** think that we have missed a **Cookie** or there is any discrepancy, please let **Us** know.
- 16.2. **Strictly necessary**
We use the following strictly necessary **Cookies**:

Description of Cookie	Purpose
Cookie 1: remember username.	The cookie is saved in the browser and is updated on each login and the expiry date is updated to 1 year from last login.
Cookie 2: GDPR cookie and privacy banner.	GDPR cookie to remember if the gdpr message was closed (so that it does not pop-up again if you click a button or a link. This cookie is saved in the session so if you close your browser or your session has expired then it will pop-up again